



Notification Waiver Determination

Australian Motors Group – Mudjee Toyota

Acquisition	Australian Motor Group Pty Ltd (AMG) applied for a notification waiver in respect of its proposed acquisition (via a specialised vehicle, AMG Headquarters Eighteen Pty Ltd) of substantially all of the assets of the motor vehicle dealership business trading as Mudjee Toyota (Mudjee Toyota), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	20 August 2026

Parties to the Acquisition	The acquirer, AMG, and its connected entities are majority owned by Mark James Fitzgerald who owns, controls and operates a group of 12 franchised automotive dealerships in 32 locations across Sydney, Newcastle and Taree. The AMG dealerships represent 17 vehicle brands as an authorised dealer of new vehicles, including Toyota, BMW, Mazda, Ford, Hyundai, Kia, Subaru, Volkswagen, Nissan, Volvo, GMSV, Jeep, Alpha Romeo, Fiat Pro and Suzuki. The AMG dealerships also sell a range of used vehicles, in addition to providing vehicle servicing and repairs, genuine manufacturers' spare parts and accessory sales, as well as facilitating finance, insurance and customer care products in connection with the vehicle transactions. The target, Mudjee Toyota, is a new and used car retailing business that operates a franchised automotive dealership in Mudjee, New South Wales. Mudjee Toyota also supplies manufacturers' spare parts and accessories, aftermarket servicing and repairs, and finance and insurance solutions.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: there is a small overlap between AMG and Mudjee Toyota in the supply of new and used cars in the Mudjee region

	b. there are alternative suppliers of new and used cars in the Mudgee region and alternative Toyota dealerships in the wider region. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act